

Community Participation Plan

Discussion Paper

April 2026



Acknowledgement of Country

The Department of Planning, Housing and Infrastructure acknowledges that it stands on Aboriginal land. We acknowledge the Traditional Custodians of the land, and we show our respect for Elders past, present and emerging through thoughtful and collaborative approaches to our work, seeking to demonstrate our ongoing commitment to providing places in which Aboriginal people are included socially, culturally and economically.

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Community Participation Plan

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Introduction

The NSW Government is implementing legislative reforms to make the planning system faster, fairer and more outcomes focused. As part of these reforms, a single Community Participation Plan is proposed to apply across the State, standardising public exhibition and notification requirements and, providing certainty for all stakeholders who interact with the planning system.

There are currently over 120 different Community Participation Plans and community engagement strategies implemented across NSW, leading to inconsistent consultation practices and timeframes for public exhibition of draft proposals. These inconsistencies mean that similar developments proposals can require different processes depending on location.

A new statewide Community Participation Plan will reduce unnecessary consultation for low-risk or strategically assessed projects while preserving meaningful community input on significant developments. The new plan encourages community participation during the consultation process, highlights ways that you can stay informed on strategic plans or developments in your local area and provides guidance on how to respond to developments or plans that affect you.

Purpose of this discussion paper

This discussion paper outlines the key changes proposed to community participation for local development applications, complying development certificates, and strategic planning and other planning matters.

This paper should be read alongside the draft statewide Community Participation Plan that is currently available for public feedback and the broader reforms to the NSW planning system introduced by the NSW Government.

Feedback on this discussion paper will be used to inform the final version of the statewide plan and possible further changes to the Environmental Planning and Assessment Act 1979 (EP&A Act) and *Environmental Planning and Assessment Regulation 2021* (EP&A Regulation) required to implement any final changes.

Have your say

The NSW Government invites feedback on the information outlined in this discussion paper including proposed consultation timeframes for development applications, changes to complying development certificates, strategic planning, and other planning matters.

Public exhibition period details are included in the draft statewide Community Participation Plan on the NSW Planning Portal. To give your feedback, you can:

- upload a submission via the NSW Planning Portal
- participate in the online survey on the NSW Planning Portal
- email questions about the discussion paper and draft statewide plan to the project team at CPP@dphi.nsw.gov.au

Background

Role of the Community Participation Plan

The plan provides detail on how planning authorities will engage with the community and other stakeholders in the decision-making process for planning decisions. The draft plan sets an expectation that public exhibition and engagement is proportionate to the impact and type of development proposed, and the scale of a strategic plan or planning instrument. The draft plan will provide a consistent approach across the state, making it easier for stakeholders and communities to understand the minimum and typical public exhibition timeframes.

The draft plan highlights the importance of using engagement strategies to outline specific mechanisms and tools for how councils and other planning authorities engage with communities and stakeholders on planning matters. This will ensure all audiences, including young people, people living with disabilities, the elderly, those living in rural areas, Aboriginal and Torres Strait Islanders and culturally and linguistically diverse people, can engage effectively.

Currently there are large differences in how councils notify the community and stakeholders of different development types.

Some councils rely on default public exhibition timeframes of 14 days for all development types, while other councils specify different public exhibition timeframes for different types of development, ranging from zero to 28 days.

This has created confusion and adds unnecessary time to the assessment of development application between different local government areas.

To encourage greater participation in the early stages of the planning process such as regional and district strategic plans, longer public exhibition timeframes are proposed. Community knowledge is critical in creating a shared vision for an area at this stage, and this approach will ensure more meaningful upfront engagement, accessibility and inclusion early in the decision-making process.

The draft plan brings together the strengths of current Community Participation Plans used by councils and other planning authorities into one applicable statewide document, that is simple to navigate.

Current public exhibition timeframes

A review of councils' existing Community Participation Plans found that they can vary significantly between councils, even adjoining councils. Differences include the information provided in the plan, timeframes for public exhibition of the same development types, and default public exhibition timeframes.

Table 1 highlights the current differences in public exhibition timeframes for the same development type found from a selection of metropolitan and regional council public exhibition timeframes for the same development type.

Councils should be applying consistent minimum public exhibition timeframes for low impact development types in the first instance and only increasing public exhibition timeframes to 14 days where development will result in higher impacts. Where a proposed development already meets the

agreed development controls which were informed by upfront strategic planning and community and stakeholder engagement, notification may not be necessary.

Key

Exempt
from
exhibition

Table 1: Public exhibition timeframes across a sample of 14 different councils

Council	Development Type								Notes
	Internal building (residential)	Demolition	Dwelling - one storey	Alts / adds - one storey	Ancillary residential	Secondary dwellings	Boundary adjustments	Signage	
Blacktown	7	7	7	7	7	7*		-	*up to two storeys
Canterbury-Bankstown						14	-		
Inner West		*	14	14	14	14	14		*ancillary structures
Fairfield		14	14	14	14	14	14		
Liverpool		14				14	14		
Parramatta			14	14	14	14		-	
Wollondilly			*	*	7^	7^	-	14*	*criteria applies for exemption (i.e setbacks, heritage) ^only exempt when in residential zones
Woollahra	15	15	15	15	15	15	15	15	exemptions only apply for emergency works
Kempsey		14							
Narrabri	14	14	14	14	14	14		-	
Shellharbour		-				14			In greenfield release area
Shoalhaven									
Dubbo		14				14		14	
Wollongong						14	*	^	*minor adjustments ^ business zones

Proposed changes to notification and public exhibition of strategic planning

Public exhibition of strategic planning

As part of the suite of planning system reforms passed by the NSW Parliament in November 2025, the objects of the Act have been updated to better reflect today's planning priorities. The new objects embed proportionality into planning processes and decision-making, ensuring that assessment efforts respond to the scale and impact of development proposals.

Early engagement builds community confidence in the planning system, provides greater transparency about how decisions are made and ensures that potential concerns and priorities are explored proactively rather than reactively.

For example, public exhibition of the draft Sydney Plan was recently open for 58 days (Christmas period excluded) due to the significance of this strategic document.

The draft Community Participation Plan aligns with this intent by encouraging and strengthening meaningful upfront community consultation at the strategic planning stage, ensuring the focus is on engaging earlier in the process with individuals and communities so that issues and priorities are identified and addressed prior to development assessment.

The Department is proposing to commit to a longer exhibition timeframe beyond the legislated minimum 45-day public exhibition timeframe in the plan to provide more time for the community and stakeholders to respond to strategic planning documents and proposals.

Strategic land use plans set out a clear framework for areas of growth, infrastructure needs, environmental challenges and economic opportunities. It is the single most important stage in the planning process as individuals and communities can have a say on where they think development should occur and where infrastructure is needed most.

Extension to minimum public exhibition timeframes for regional strategic plans

In the draft plan, it is proposed to introduce:

- a minimum non-legislated 60-day public exhibition timeframe for draft regional or district strategic plans
- a minimum non-legislated 60-day public exhibition timeframe for local strategic planning statements

These changes will provide a greater opportunity to undertake targeted engagement with communities and allow additional time for stakeholders and the community to consider and provide meaningful submissions when it is most valuable. To facilitate the proposed changes, amendments to legislation will be considered.

Proposed changes to notification and exhibition of land-use planning

Public exhibition of planning proposals

Public exhibition period of a planning proposal

The Environmental Planning and Assessment Act 1979 specifies that unless a public exhibition period for a planning proposal is specified in the gateway determination, a minimum public exhibition period of 28-days should apply.

The appropriate public exhibition period is guided by the *LEP Making Guideline – August 2023*, which includes recommendations based on the categorisation or perceived impact of the proposal. The current legislation allows for gateway determination to specify a shorter period, or no-exhibition if so specified. The planning proposal may be varied by a Planning Proposal Authority at any time and re-exhibition of the proposal may be required if the minister (or delegate) determines further consultation is required.

Local environmental plans are tools to implement the strategic planning priorities of the state and local government area, through changes to local zoning and development controls.

Planning proposals are the first step in the process of amending a local environmental plan which describe how statutory changes will link with strategic plans.

Planning proposals can be site-specific, apply to a precinct or make changes across a local government area.

Pre-rezoning: precinct plans, master plans, and structure plans

When councils or the Department propose changes to a precinct through rezoning, they prepare a master plan (or equivalent) which precedes the local environmental plan making process.

Precinct and master plans take a place-based approach to guiding growth, and detailing actions and objectives for specific areas based on broader strategic plans. They outline the future vision for development, infrastructure, land use and public spaces at a high-level.

Before adopting a master plan, councils or the Department undertake community engagement to seek feedback on the proposed framework. While public exhibition periods for master plans are not legislated, the draft statewide plan proposes:

- a standard 42-day public exhibition period for masterplans as best-practice (unless adjusted due to urgency, scale or the nature of the project).

Removing the requirement to re-exhibit master plans at the planning proposal stage

The draft plan proposes to:

- shorten or remove public exhibition requirements at the planning proposal stage, where consultation has already occurred as part of a recent masterplan or related strategic planning update. This would involve a change to the LEP making guidelines to outline that the

recommended period of public exhibition for a planning proposal where consultation has occurred and is consistent with an exhibited masterplan stage is zero to 14 days.

This approach avoids duplication, promotes early engagement at the strategic planning stage and shortens planning proposal timeframes so homes and infrastructure can be delivered faster.

Further updates to the *LEP Making Guideline – August 2023* will outline the process moving forward.

Proposed changes to notification and public exhibition of development applications and complying development certificates

Notification of a complying development certificate

Complying development does not require public exhibition like a development application, so public input is not considered by the certifier or council in determining a complying development certificate.

The certifier's role is to assess proposed development occurring on land where complying development is permitted and to determine whether it meets the relevant development standards of the *State Environmental Planning Policy (Exempt and Complying Development Code) 2008*.

There are currently inconsistencies in how CDCs are notified across NSW:

- in 34 metropolitan local government areas – certifiers cannot determine a complying development certificate for 14 days after notice is given for certain forms of complying development. 7-days' notice is also given to neighbours before works commence for certain new additions and demolition of existing buildings
- other local government areas – There is no requirement to notify neighbours before determining complying development certificates and two days' notice is also given to neighbours before works commence for certain new additions and demolition of existing buildings

This results in different complying development certificate determination timeframes and notice requirements across NSW, from 20 days for the 34 select metropolitan local government areas, 10 days for the other local government areas, and, 10 days for Pattern Book related development.

Standard 7-day pre-commencement notice for complying development certificates

To provide consistency across NSW, the following changes to the *Environmental Planning and Assessment Regulation 2021* are proposed:

- removal of the 7 and 14 day written notice requirements before a complying development certificate is determined.
- retention of the notice to council advising the CDC determination.
- a 7-day pre-commencement of work notification for new buildings, additions and demolition in all local government areas.

These changes are proposed given submissions and objections cannot be made and the certifier or council's role is to determine whether the development is compliant with the existing relevant environmental planning instrument. Increasing and providing consistency for the pre-commencement of work notification across NSW will give greater notice to adjoining neighbours of proposed works before they commence.

Public exhibition of local development applications

Under the *Environmental Planning and Assessment Act 1979*, councils have discretion on how local development applications are notified. This has resulted in inconsistent public exhibition timeframes that currently range from zero to 28 days.

Currently, councils can specify shorter or longer public exhibition periods than the standard 14 days in their Community Participation Plans. Higher impact proposals — such as environmentally sensitive, designated, or nominated integrated development — require extended public exhibition periods of 28 days.

Councils also have discretion to choose certain types of low impact development. This typically includes internal residential alterations, new one or two storey dwellings, subdivisions, and ancillary structures such as pools, sheds, and garages.

Development exempt from public exhibition means that adjoining neighbours will not be notified by their council that a development application has been received for a site, allowing councils to complete their assessment of the application.

Development exempt from public exhibition and notification

The draft Community Participation Plan, proposes:

- certain development types will be exempt from public exhibition and notification, listed in Table 2, where the development:
 - is permissible in the relevant zone and,
 - meets the relevant planning controls in a local environmental plan, development control plan and/or state environmental planning policy and,
 - does not include a 4.6 variation

Development types exempt from public exhibition and notification will allow development to be assessed quickly, reducing the administrative burden on councils and supporting their alignment with the Minister's Statement of Expectations and the NSW Government's Faster Assessments program.

The proposed development types exempt from public exhibition and notification are identified in Table 2. These development types were informed by public exhibition exemptions from current council Community Participation Plans and development types that can be undertaken as complying development under the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* without public exhibition.

Table 2 Mandatory exhibition requirements - Development types exempt from public exhibition and notification

Residential and related uses	
Alterations - Internal alterations	Moveable dwellings
Alterations and additions to existing dwellings	New single and two storey dwellings, dual occupancies and attached dwellings
Ancillary development (such as pools, sheds, farm buildings)	Temporary structures

Boundary adjustment	Rural workers dwellings
Demolition (excluding heritage items)	Secondary dwellings
Exhibition homes and villages	Strata and Stratum subdivision
Group homes	Tree removal where they are not heritage items
Heritage item – minor works that does not impact item and is located behind the front façade	Home business and/or home occupation
Residential flat buildings*	Shop top housing*

**a pre-commencement of works notification to adjoining neighbours is required 7 days before works commence*

Primary production and rural development	
Agritourism	Extensive agriculture
Commercial farm	Farm buildings
Commercial development	
Alterations and additions	Kiosks
Change of use	Roadside stalls
Take away food and drink premises	Signage
Industrial development	
Change of use	Industrial retail outlets
Community, health, education, recreational and other infrastructure	
Alterations – internal and external	Environmental protections works
Environmental facility	
Tourist and Visitor accommodation	
Bed and Breakfast accommodation	Farm stay accommodation
Other	
Modifications involving minimal environmental impact	Applications made under section 4.55(1) of the EP&A Act. Applications made under section 4.55(1A) of the EP&A Act. Applications made under section 4.56 of the EP&A Act with minimal environmental impact.

Application for the review of a determination or decision of a consent authority (Division 8.2 Reviews)	Reviews where the application has not been amended pursuant to section 8.3(3) of the EP&A Act.
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Public exhibition of division 8.2 reviews

To support the NSW Government's Planning Systems Reforms, and increase the uptake of internal reviews, the draft Community Participation Plan proposes changes to the public exhibition period of certain types of reviews. Currently, review applications are to be exhibited for 14 days unless the Community Participation Plan specifies otherwise.

To resolve unnecessary exhibition, in the draft Community Participation Plan the Department is proposing:

- that an application for review that has not been amended pursuant to section 8.3(3) will be exempt from public exhibition. The consent authority will consider submissions made on the original application in determining the review. Notification to previous submitters may still be made.
- where an application has been amended under section 8.3(3), the public exhibition period is to be the same as the original application.

Residential flat buildings and shop top housing

Residential flat buildings and shop top housing are development types which are proposed to be exempt from standard public exhibition and notification across NSW where:

- residential flat buildings or shop top housing are permissible in the relevant zone, and,
- the development meets the controls under a local environmental plan, development controls plan and/or a state environmental planning policy, and,
- does not include a 4.6 variation.

To ensure communities are still being informed, a new pre-commencement notification that requires written notice to adjoining neighbours 7 days prior to works commencing is proposed.

Targeted assessment

The targeted assessment pathway introduced as part of the planning system reforms allows certain steps in the development assessment process such as public exhibition to be turned off where those matters have already been addressed through earlier planning processes. This would be implemented through the introduction of a state environmental planning policy.

Public exhibition requirements for the targeted assessment pathway are detailed in the *Environmental Planning and Assessment Act 1979* and included in the draft Community Participation Plan.

Higher impact development

The current minimum 28-day public exhibition timeframe for high impact development such as development that requires an environmental impact statement, designated development, and nominated integrated development will remain unchanged to reflect their impact and proportionality in the planning system.

Using engagement strategies to specify how the community can engage on local planning matters

A council's Community Engagement Strategy (CES), required under the *Local Government Act 1993*, sets how council intends to engage the community for plans, policies, programs and key activities including Council's community strategic plan, plans of management, and council's planning and delivery of services and infrastructure.

When incorporating planning activities into their CES, the principles for engagement under the *Environmental Planning and Assessment Act 1979* and the statewide Community Participation Plan should be considered. Guidance is available to assist in preparing their engagement strategies through the Office of Local Government's Integrated Planning and Reporting Guidelines and Handbook

Savings and Transitional arrangements

A large number of councils and planning authorities currently have combined community participation plans and Community Engagement Strategies. Transitional arrangements will be in place to confirm that Community Engagement Strategies that are combined with community participation plans remain valid, while any timeframes referenced in community participation plans regarding planning processes have no effect on adoption of the proposed statewide plan.

Determining authorities under Part 5 of the *Environmental Planning and Assessment Act* 1979 and the Independent Planning Commission

Determining authorities

Several determining authorities can carry out development without consent as part of their everyday responsibilities, such as water supply infrastructure being constructed by a water utility provider.

Self- assessment of these activities is undertaken under Part 5 of the EP&A Act, which ensures determining authorities consider environmental issues before they undertake or approve an activity that does not require development consent from a council or the Minister.

These authorities were previously required to prepare their own community participation plan if an environmental impact statement was required.

The consultation requirements for these authorities will now be incorporated in the statewide plan. Agency specific engagement strategies will continue to sit alongside the statewide plan and continue to outline specific mechanisms and tools an agency will use to engage with communities and stakeholders.

Independent Planning Commission

The Independent Planning Commission is the declared consent authority for certain State significant development applications.

Unlike a typical consent authority, some of the ordinary consent authority functions of the Commission are carried out by the Planning Secretary (through the Department of Planning, Housing and Infrastructure) on behalf of the Commission. Among these functions are, at section 4.6(d) of EP&A Act, carrying out the community participation requirements of Division 2.6 (of the EP&A Act).

As part of its commitment to public engagement, the Commission will typically conduct further processes in addition to the formal statutory community participation requirements that are already carried out on its behalf by the Department. Some of these processes are mandatory – the Commission must conduct a public hearing when directed to do so by the minister – while others are discretionary but standard practice. For example, the Commission will always accept written submissions on matters on which it is deliberating, and may, in certain circumstances, also conduct stakeholder meetings, public or local meetings.

The Commission's Engagement Strategy, as updated from time to time, sets out in more detail the public engagement undertaken by the Commission.

Planning system reforms

Planning system reforms

The *Environmental Planning and Assessment Amendments (Planning System Reforms) Act 2025* was passed by both Houses of Parliament on 11 November 2025 and received assent on 24 November 2025. The first stage of the reforms commenced on 15 December 2025, introducing the new objects, establishing the Housing Delivery Authority (HDA) and Development Coordination Authority (DCA) in law, changes to the matters for consideration in determining a development application, and commencing initial changes to planning panels.

A second proclamation was made on 25 February 2026 to commence additional provisions including changes to appeals and reviews, a broadening of the scope of minor modifications, and the introduction of targeted assessment and proportionality into Part 5 assessments. These provisions commenced on 21 March 2026.

The remaining provisions will commence as part of a subsequent proclamation at a later date to allow for further consultation, system updates, and alignment with future regulatory changes, including the commencement of the new statewide Community Participation Plan.

Further changes

There are further changes that will need to occur associated with the introduction of the new statewide plan. These include:

- savings and transitional arrangements to confirm existing engagement strategies continue to apply following the making of the draft statewide plan, but the statewide plan prevails to the extent of any inconsistency in terms of any exhibition periods for development applications and modifications
 - savings and transitional arrangements so that existing development applications, strategic plans and planning proposals are not subject to any additional notification requirements.
 - an amendment to the *Environmental Planning and Assessment Regulation 2021* to deliver the complying development certificate notification changes and review other changes.
-

Monitoring the Community Participation Plan

The Department will monitor and evaluate its engagement activities by reference to the measurable actions outlined in the draft statewide plan.

A review of timeframes may be undertaken within 12 months of the publication of the final statewide plan.

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